

HOUSE No. 5639

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Bill authorizing the town of Nantucket conservation commission to convey a certain parcel of land situated in the town for purposes of conveyance to the town of Nantucket under the care, custody, management and control of the select board and the town of Nantucket to convey certain land in the town of Nantucket held for open space, passive recreation or conservation purposes to the Nantucket islands land bank for the purposes pursuant to its legislation and/or to the Sconset Trust, Inc. For open space, conservation and passive recreation purposes (House, No. 4523), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5639) [Local Approval Received].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Nantucket conservation commission to convey a certain parcel of land situated in the town for purposes of conveyance to the town of Nantucket under the care, custody, management and control of the select board and the town of Nantucket to convey certain land in the town of Nantucket held for open space, passive recreation or conservation purposes to the Nantucket Islands Land Bank for the purposes pursuant to its enabling legislation for open space, conservation and passive recreation purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the town of
2 Nantucket acting by and through its conservation commission, may convey a certain parcel of
3 land situated at 35 Grove lane, shown as Lot 5, on a plan of land entitled “Plan of Land in
4 Nantucket, Massachusetts as prepared for Abbott E. Jr. and Frances J. Johnson” recorded with
5 the Nantucket county registry of deeds in Plan File 8-A, owned by the town of Nantucket for
6 purposes of preservation of habitat for wildlife, pursuant to a deed recorded with the Nantucket
7 county registry of deeds in book 164, page 228, to the town of Nantucket acting by and through
8 its select board for purposes of conveyance.

9 SECTION 2. Notwithstanding any general or special law to the contrary, the town of
10 Nantucket may transfer, sell, convey or otherwise dispose of all or a portion of a certain parcel of
11 land situated in the town of Nantucket to the Nantucket Islands Land Bank for the purposes

12 pursuant to its enabling legislation for open space, conservation and passive recreation purposes,
13 and described as 35 Grove lane, shown on tax assessor's map 71 as parcel 342.

14 Any such disposition pursuant to this section shall be on such terms and conditions as the
15 select board deems appropriate, which may include the reservation of restrictions and easements,
16 all as shown on a map filed with the office of the town clerk.

17 SECTION 3. This act shall take effect upon its passage.